SECTION75HELP.CO.UK

Section 75 Claim Pack

Your complete toolkit for claiming a refund from your credit card provider

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HOW TO USE THIS PACK

Start with Document 1 (Cover Sheet) to determine which documents apply to your situation. Send Documents 2 and 3 as your initial claim. If rejected, use Documents 5 to 8 to choose the correct rebuttal. If the bank issues a final rejection, send Document 9 to the Financial Ombudsman Service within six months.

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READ THIS FIRST

This cover sheet tells you which document to use in your situation and the order in which to use them. No placeholders to fill in — this document is for your reference only.

What is in this pack

#	Document	When to use it
1	**Cover Sheet and Decision Guide**	This document. Read before you start.
2	**Initial Claim Letter**	Your first letter to your credit card provider. Send this with Document 3 and your evidence.
3	**Evidence Cover Letter**	A cover sheet listing the documents you enclose. Always send alongside Document 2.
4	**Plain English Process Guide**	Read before you start. Sets out the full process, realistic timelines, and what the bank is likely to say.
5	**Rejection Rebuttal — Standard**	Bank has rejected without a specific reason, or says you must pursue the retailer first.
6	**Rejection Rebuttal — Overseas Purchase**	Bank says Section 75 does not apply because you bought abroad.
7	**Rejection Rebuttal — Part Payment**	Bank says it is only liable for the portion you paid by credit card, not the full contract value.
8	**Rejection Rebuttal — Third Party / Booking Agent**	Bank says Section 75 does not apply because you paid an intermediary, not the supplier directly.
9	**FOS Complaint Letter**	Bank has issued a final rejection. Send this to the Financial Ombudsman Service within six months.

Step-by-step — most common situation (business failure or non-delivery)

1. **Read Document 4** (Plain English Process Guide) before you do anything else.
2. **Gather your evidence.** You will need: your credit card statement showing the transaction; your order confirmation or receipt; evidence of the failure (administration notice, delivery failure, etc.); any correspondence with the supplier.

3. **Complete Document 2** (Initial Claim Letter). Fill in every placeholder marked in bold, yellow-highlighted square brackets. Delete the option paragraphs you do not need.
4. **Complete Document 3** (Evidence Cover Letter). List each document you are enclosing.
5. **Send Documents 2 and 3 together with your evidence** by recorded post or via your card provider's secure messaging system. Keep a full copy of everything you send.
6. **Wait up to eight weeks.** Your card provider must respond within eight weeks under FCA rules (DISP 1.6.2R). Note the date you sent your claim.
7. **If they pay:** done. Confirm the refund appears on your statement.
8. **If they reject:** choose the correct rebuttal (Documents 5, 6, 7, or 8 — see the table below) and respond in writing only.
9. **If they reject again, or do not respond within eight weeks:** send Document 9 to the Financial Ombudsman Service. You must do this within six months of the date of their final response letter.

Choosing the right rebuttal (Documents 5 to 8)

What the bank said	Document to use
Vague rejection, no specific reason given	Document 5 — Standard
"You must pursue the retailer first" or "we are not jointly liable"	Document 5 — Standard (Option A)
"There is insufficient evidence"	Document 5 — Standard (Option B)
"The purchase does not qualify" or they dispute the price threshold	Document 5 — Standard (Option C)
No reasoned response provided	Document 5 — Standard (Option D)
"Section 75 does not apply to overseas purchases"	Document 6 — Overseas Purchase
"Only part of the price was on the card, so we are only liable for that portion"	Document 7 — Part Payment
"You paid a booking agent or third party, not the supplier directly"	Document 8 — Third Party / Booking Agent
Any rejection — bank has issued a final response letter	Document 9 — FOS Complaint Letter

Important notes before you start

- **Do not rely on telephone calls.** All Section 75 claims and rebuttals should be in writing. Phone calls are not consistently logged and leave you with no paper trail.
- **Keep copies of everything** you send and receive. Note the date of every communication.
- **You do not need a solicitor** for a standard Section 75 claim. These templates are designed to be used directly by the account holder.
- **The Financial Ombudsman Service is free to use** and its decisions are binding on the bank. A bank rejection is not the end of the road.
- **Time limits matter.** You have six months from the date of the bank's final response letter to refer to the FOS. Do not miss this deadline.

Consumer Credit Act 1974, Section 75: legislation.gov.uk/ukpga/1974/39/section/75 | Financial Ombudsman Service: financial-ombudsman.org.uk | 0800 023 4567

USE THIS DOCUMENT WHEN

Making your first Section 75 claim to your credit card provider. Send this with Document 3 (Evidence Cover Letter) and your supporting documents. This is always the first letter you send.

[YOUR FULL NAME]
[YOUR ADDRESS LINE 1]
[YOUR ADDRESS LINE 2]
[YOUR TOWN OR CITY]
[YOUR POSTCODE]

[DATE]

Section 75 Disputes Team
[CREDIT CARD PROVIDER NAME]
[CREDIT CARD PROVIDER ADDRESS LINE 1]
[CREDIT CARD PROVIDER ADDRESS LINE 2]
[CREDIT CARD PROVIDER POSTCODE]

Account / card reference: [YOUR ACCOUNT NUMBER OR LAST FOUR DIGITS OF CARD]

Section 75 Claim — Consumer Credit Act 1974

Dear Sir or Madam,

I am writing to make a formal claim under Section 75 of the Consumer Credit Act 1974 in connection with a purchase made on my credit card account ending [LAST FOUR DIGITS].

Transaction details

Supplier or company name	[SUPPLIER OR COMPANY NAME]
Date of purchase	[DATE OF PURCHASE]
Amount charged to credit card	£ [AMOUNT PAID ON CREDIT CARD]
Total contract price	£ [TOTAL CONTRACT PRICE]

Description of goods or services	**[BRIEF DESCRIPTION — e.g. "deposit for kitchen installation" / "sofa, order reference 12345" / "holiday, booking reference AB123"]**

Grounds for claim

Select the paragraph below that matches your situation. Delete the other two options before sending.

OPTION A — BUSINESS FAILURE OR NON-DELIVERY

[SUPPLIER OR COMPANY NAME] went into administration / ceased trading on **[DATE OF ADMINISTRATION OR CLOSURE]** . As a result, the goods or services for which I paid have not been delivered and will not be delivered. This constitutes a breach of contract.

OPTION B — FAULTY GOODS

The goods delivered by **[SUPPLIER OR COMPANY NAME]** on **[DATE OF DELIVERY]** are not of satisfactory quality and are not fit for purpose, in breach of Sections 9 and 10 of the Consumer Rights Act 2015. Specifically: **[BRIEF DESCRIPTION OF THE FAULT]** . I contacted the supplier on **[DATE]** and have been unable to obtain a remedy.

OPTION C — GOODS OR SERVICES NOT AS DESCRIBED

The goods or services provided by **[SUPPLIER OR COMPANY NAME]** are materially different from their description at the point of sale, in breach of Section 11 of the Consumer Rights Act 2015. Specifically: **[BRIEF DESCRIPTION OF THE DISCREPANCY BETWEEN WHAT WAS ADVERTISED AND WHAT WAS DELIVERED]** .

Your liability under Section 75

Section 75(1) of the Consumer Credit Act 1974 provides that where a debtor has a claim against a supplier in connection with a transaction made under a debtor-creditor-supplier agreement, the creditor is jointly and severally liable with the supplier in respect of that claim.

The conditions of Section 75(1) are satisfied in this case:

- The purchase was made using a regulated consumer credit agreement (my personal credit card).
- The total purchase price is £ **[TOTAL CONTRACT PRICE]** , which is between £100 and £30,000, satisfying Section 75(3)(b).
- The supplier is in breach of contract as described above.

As a party that is jointly and severally liable, you are not entitled to require me to exhaust my remedies against the supplier before pursuing my claim against you. The right to claim against either or both parties simultaneously is a fundamental feature of joint and several liability.

Amount claimed

I am claiming the sum of **£** **[TOTAL AMOUNT CLAIMED]** , representing **[all sums paid to the supplier / the full contract price of £[TOTAL CONTRACT PRICE] less a partial refund of £[AMOUNT ALREADY REFUNDED] already received]** .

Evidence enclosed

I enclose the following documents in support of this claim (detailed in my accompanying Evidence Cover Letter):

- Credit card statement showing the transaction dated **[DATE OF TRANSACTION]**
- Order confirmation or receipt from **[SUPPLIER OR COMPANY NAME]**
- **[EVIDENCE OF FAILURE — e.g. "Notice of administration dated [DATE]" / "Photographs of faulty goods" / "Screenshot of original product description alongside delivered item"]**
- **[CORRESPONDENCE WITH SUPPLIER — e.g. "Copy of email to supplier dated [DATE], unanswered" — delete if not applicable]**

Response requested

Please acknowledge receipt of this letter in writing and provide a final response within eight weeks, as required under the Financial Conduct Authority's Dispute Resolution sourcebook (DISP 1.6.2R). If you require any further information, please contact me at the address above or at **[YOUR EMAIL ADDRESS]** .

If I do not receive a satisfactory final response within eight weeks, I will refer this matter to the Financial Ombudsman Service.

Yours faithfully,

[YOUR FULL NAME — PRINTED]

Enc: Evidence Cover Letter and supporting documents as listed above.

USE THIS DOCUMENT WHEN

Sending supporting documents to your credit card provider alongside the Initial Claim Letter (Document 2). Complete the evidence list below, then attach this letter as the first page of your enclosures.

[YOUR FULL NAME]
[YOUR ADDRESS LINE 1]
[YOUR ADDRESS LINE 2]
[YOUR TOWN OR CITY]
[YOUR POSTCODE]

[DATE]

Section 75 Disputes Team
[CREDIT CARD PROVIDER NAME]
[CREDIT CARD PROVIDER ADDRESS LINE 1]
[CREDIT CARD PROVIDER ADDRESS LINE 2]
[CREDIT CARD PROVIDER POSTCODE]

Account / card reference: [YOUR ACCOUNT NUMBER OR LAST FOUR DIGITS OF CARD]

Section 75 Claim — Supporting Evidence

Dear Sir or Madam,

I enclose the following documents in support of my Section 75 claim against [SUPPLIER OR COMPANY NAME], as set out in my accompanying claim letter dated [DATE OF CLAIM LETTER].

Enclosed documents

List each document you are enclosing. Delete any rows that do not apply. Add further rows if needed.

#	Document description	Date of document	Pages
1	Credit card statement showing transaction	[DATE OF STATEMENT]	[NUMBER]

#	Document description	Date of document	Pages
2	Order confirmation or receipt from [SUPPLIER NAME]	[DATE]	[NUMBER]
3	[EVIDENCE OF FAILURE — e.g. "Notice of administration" / "Delivery failure notice" / "Photographs of faulty goods (4 images)"]	[DATE]	[NUMBER]
4	[CORRESPONDENCE WITH SUPPLIER — e.g. "Email to supplier dated [DATE], unanswered" — delete if not applicable]	[DATE]	[NUMBER]
5	[ANY ADDITIONAL DOCUMENT — delete if not applicable]	[DATE]	[NUMBER]

Total documents enclosed: [TOTAL NUMBER OF PAGES] pages across [NUMBER] documents.

Acknowledgement requested

Please confirm in writing that you have received these documents and that my claim is being processed. If any document is missing, illegible, or insufficient, please contact me promptly so that I can supply a replacement.

I can be reached at [YOUR EMAIL ADDRESS] or at the address above.

Yours faithfully,

[YOUR FULL NAME — PRINTED]

Enc: As listed above.

READ THIS BEFORE YOU START

This guide explains the Section 75 process, what to expect at each stage, and what the bank is likely to say. There are no placeholders to fill in — this document is for your reference only.

Section 75: Plain English Guide

What Section 75 is

Section 75 of the Consumer Credit Act 1974 makes your credit card provider jointly liable with a retailer if the retailer breaches their contract with you or misrepresents what they are selling. You can claim against your card provider directly, even if the retailer has gone into administration, refused to engage, or cannot be traced.

This applies as long as: (1) you paid at least £1 of the purchase on your personal credit card; (2) the total purchase price was between £100 and £30,000; and (3) the supplier failed to deliver what was promised.

The process, step by step

Step	What to do	Realistic timescale
1	Send Documents 2 and 3 with your evidence to your card provider's Section 75 disputes team. Send by recorded post or via secure messaging in online banking. Keep a full copy of everything.	Do this as soon as possible
2	Wait for the card provider to respond. They must issue a final response within eight weeks under FCA rules (DISP 1.6.2R). Many cases resolve in four to six weeks.	Four to eight weeks
3a	*If they pay:* your claim is resolved. Confirm the refund appears on your account.	—
3b	*If they reject:* use the appropriate rebuttal letter from this pack (Documents 5, 6, 7, or 8 — see the Cover Sheet for which applies). Reply in writing only — never by phone.	Reply within 14 days of receiving the rejection

Step	What to do	Realistic timescale
4	*If they reject again, or if eight weeks pass without a final response:* send Document 9 to the Financial Ombudsman Service. You must do this within six months of the date on their final response letter.	FOS resolution typically takes three to nine months

What the bank is likely to say — and what the law actually says

What the bank says	What the law actually says
"You must pursue the retailer first."	Incorrect. Section 75 creates joint and several liability. You may pursue either the retailer or the card provider, or both, in any order, without any obligation to try one before the other.
"We are only liable for the amount you paid on the card."	Incorrect. Section 75 covers the full contract value, not just the portion charged to the card. If you paid £50 on a card for a £1,500 item, your claim is for £1,500.
"Section 75 does not apply to purchases made abroad."	Incorrect. The House of Lords confirmed in *OFT v Lloyds TSB Bank plc* [2007] UKHL 48 that Section 75 applies to overseas transactions on UK credit cards.
"You paid a booking agent, not the supplier, so Section 75 does not apply."	This requires examination. If the agent contracted with you as principal (selling in their own name), the debtor-creditor-supplier link is satisfied. See Document 8.
"Your claim is out of time."	The limitation period is six years from when the cause of action arose in England and Wales (five years in Scotland). Check your dates carefully before accepting this.

Key contacts

- **Your card provider's Section 75 or disputes team:** check your provider's website for the postal address or secure-message route. Do not use general customer services.
- **Financial Ombudsman Service:** Exchange Tower, London, E14 9SR | 0800 023 4567 | financial-ombudsman.org.uk
- **Consumer Credit Act 1974, Section 75:** legislation.gov.uk/ukpga/1974/39/section/75

Honest notes on timelines

Banks take four to eight weeks for most claims. The FOS faces significant backlogs; cases referred typically take three to nine months to resolve, and complex cases can take longer. Neither timeline is under your control. What is under your control is making a well-evidenced claim from the start, which reduces the chance of rejection and removes the need to escalate.

USE THIS DOCUMENT WHEN

Your credit card provider has rejected your Section 75 claim with a vague reason, has told you to pursue the retailer first, has said there is insufficient evidence, or has disputed whether your purchase qualifies. Choose the option below that matches their specific reason.

[YOUR FULL NAME]
[YOUR ADDRESS LINE 1]
[YOUR ADDRESS LINE 2]
[YOUR TOWN OR CITY]
[YOUR POSTCODE]

[DATE]

Section 75 Disputes Team
[CREDIT CARD PROVIDER NAME]
[CREDIT CARD PROVIDER ADDRESS LINE 1]
[CREDIT CARD PROVIDER ADDRESS LINE 2]
[CREDIT CARD PROVIDER POSTCODE]

Account / card reference: [YOUR ACCOUNT NUMBER OR LAST FOUR DIGITS OF CARD]

Formal Rebuttal of Rejected Section 75 Claim — Consumer Credit Act 1974

Dear Sir or Madam,

I refer to your letter dated [DATE OF REJECTION LETTER] in which you rejected my Section 75 claim concerning a purchase from [SUPPLIER OR COMPANY NAME] made on [DATE OF PURCHASE] for a total contract price of £ [TOTAL CONTRACT PRICE] .

I do not accept your determination. I write to ask you to reconsider, and set out below why your rejection is not well-founded in law.

Grounds for rebuttal

Select the option below that matches the bank's stated reason for rejection. Delete the other three options before sending. If the bank gave no specific reason, use Option A.

OPTION A — "YOU MUST PURSUE THE RETAILER FIRST" OR NO SPECIFIC REASON

GIVEN

You have stated that I must exhaust my remedies against the supplier before pursuing my claim against you, or you have rejected my claim without providing a lawful basis for doing so.

Section 75(1) of the Consumer Credit Act 1974 imposes joint and several liability on the creditor. Under joint and several liability, a claimant may pursue any one or all of the jointly liable parties, in any order, without any obligation to exhaust remedies against one before pursuing another. There is no provision in the Consumer Credit Act 1974, nor in any decided case, that requires a Section 75 claimant to pursue the supplier before the creditor. This is especially so where, as here, the supplier has **[gone into administration / ceased trading / refused to engage]** and pursuit of the supplier is not a realistic or timely remedy.

OPTION B — "THERE IS INSUFFICIENT EVIDENCE"

You have stated that my claim is not supported by sufficient evidence.

I refer you to the documents submitted with my original claim letter dated **[DATE OF ORIGINAL CLAIM]**, which include: **[LIST KEY DOCUMENTS — e.g. "credit card statement dated [DATE]; order confirmation from [SUPPLIER] dated [DATE]; notice of administration dated [DATE]"]**. These documents establish: (a) that the transaction was made on my credit card; (b) the total purchase price; (c) the supplier's breach of contract; and (d) the loss I have suffered.

If you require a specific additional document that you consider necessary to determine this claim, please identify what is required and I will endeavour to provide it within 14 days. A general assertion of insufficient evidence, without specifying what is lacking, does not constitute adequate grounds for rejection under DISP 1.6.4R.

OPTION C — "THE PURCHASE DOES NOT QUALIFY" OR THE BANK DISPUTES THE PRICE THRESHOLD

You have stated that my purchase does not meet the qualifying conditions for a Section 75 claim.

The qualifying conditions under Section 75(1) are: (1) the purchase was made under a regulated debtor-creditor-supplier agreement; (2) the cash price of the goods or services was more than £100 and did not exceed £30,000; and (3) the supplier was in breach of contract or guilty of misrepresentation. All three conditions are satisfied: **[EXPLAIN BRIEFLY — e.g. "the purchase was made on my personal credit card; the total purchase price was £[AMOUNT], which is within the statutory range; and [SUPPLIER NAME] has failed to deliver the goods or services as set out in my original letter"]**.

The qualifying threshold refers to the total cash price of the item or service, not the amount charged to the credit card. The requirement that at least £1 is paid on the credit card is satisfied. The full contract price is therefore covered by Section 75.

OPTION D — BANK HAS PROVIDED NO REASONED RESPONSE

Your letter of **[DATE]** does not provide specific grounds for rejecting my claim. The Financial Conduct Authority's Dispute Resolution sourcebook (DISP 1.6.4R) requires you to provide a reasoned final response setting out your reasons for rejecting the complaint. A response that does not engage with the merits of the claim does not satisfy this requirement.

Please provide specific grounds for your rejection within 14 days so that I may respond substantively. If you do not do so, I will treat your letter as a final rejection and refer this matter to the Financial Ombudsman Service.

My position

My Section 75 claim under the Consumer Credit Act 1974 is well-founded. The conditions of Section 75(1) are met. The supplier is in breach of contract. Your organisation is jointly and severally liable for my loss of £ **[TOTAL AMOUNT CLAIMED]** .

I ask that you issue a revised final response within **14 days** of this letter. If you maintain your rejection, or do not respond within that period, I will refer this matter to the Financial Ombudsman Service without further notice. The FOS has jurisdiction over Section 75 complaints and its determinations are binding on your organisation under DISP 3.6.

Yours faithfully,

[YOUR FULL NAME — PRINTED]

USE THIS DOCUMENT WHEN

Your credit card provider has rejected your Section 75 claim on the basis that the purchase was made abroad, or with an overseas supplier. This rebuttal cites *Office of Fair Trading v Lloyds TSB Bank plc* [2007] UKHL 48, in which the House of Lords confirmed that Section 75 applies to overseas transactions on UK credit cards.

[YOUR FULL NAME]
[YOUR ADDRESS LINE 1]
[YOUR ADDRESS LINE 2]
[YOUR TOWN OR CITY]
[YOUR POSTCODE]

[DATE]

Section 75 Disputes Team
[CREDIT CARD PROVIDER NAME]
[CREDIT CARD PROVIDER ADDRESS LINE 1]
[CREDIT CARD PROVIDER ADDRESS LINE 2]
[CREDIT CARD PROVIDER POSTCODE]

Account / card reference: **[YOUR ACCOUNT NUMBER OR LAST FOUR DIGITS OF CARD]**

Formal Rebuttal — Section 75 Claim — Overseas Purchase — Consumer Credit Act 1974

Dear Sir or Madam,

I refer to your letter dated **[DATE OF REJECTION LETTER]** in which you rejected my Section 75 claim concerning a purchase from **[SUPPLIER OR COMPANY NAME]**, located in **[COUNTRY OF SUPPLIER]**, made on **[DATE OF PURCHASE]** for a total contract price of £ **[TOTAL CONTRACT PRICE]** (or equivalent of **[FOREIGN CURRENCY AMOUNT AND CURRENCY]** at the time of purchase).

You have rejected my claim on the basis that **[QUOTE OR SUMMARISE THE BANK'S STATED REASON — e.g. "Section 75 does not apply to purchases made outside the United Kingdom" / "the supplier is not based in the UK and therefore Section 75 protection does not extend to this transaction"]**.

I do not accept this determination. The position you have stated is not a correct statement of the law.

Section 75 applies to overseas purchases on UK credit cards

The question of whether Section 75 of the Consumer Credit Act 1974 applies to overseas transactions on UK-issued credit cards was conclusively determined by the House of Lords in *Office of Fair Trading v Lloyds TSB Bank plc* [2007] UKHL 48.

In that case, the banks argued that the debtor-creditor-supplier link required by Section 12(b) of the Act could not be established for overseas transactions because the credit extended by the UK card provider could not be said to finance a transaction with a specific supplier. The House of Lords rejected this argument. Their Lordships held that the debtor-creditor-supplier agreement exists by virtue of the arrangements between the card issuer and the card scheme (Visa, Mastercard, etc.), which enable cardholders to purchase from any participating supplier worldwide. The debtor-creditor-supplier link is established at the time the card is issued, not at the time of any individual transaction.

The consequence is that Section 75 applies to any purchase made on a UK-regulated credit card, regardless of whether the supplier is located in the United Kingdom or abroad.

Application to my claim

My credit card is a UK-regulated consumer credit agreement issued by your organisation. The purchase from **[SUPPLIER OR COMPANY NAME]** in **[COUNTRY]** was made using this card. The total purchase price was £ **[TOTAL CONTRACT PRICE]** (or equivalent), which falls within the statutory range of more than £100 and not exceeding £30,000. The supplier has breached their contract with me as set out in my original claim letter dated **[DATE OF ORIGINAL CLAIM]** .

All conditions of Section 75(1) of the Consumer Credit Act 1974 are satisfied, and the *OFT v Lloyds TSB* decision confirms that the overseas nature of the transaction is not a bar to my claim.

My position

I ask that you reconsider your determination in light of *Office of Fair Trading v Lloyds TSB Bank plc* [2007] UKHL 48 and issue a revised final response upholding my claim for £ **[TOTAL AMOUNT CLAIMED]** within **14 days** of this letter.

If you maintain your rejection, I will refer this matter to the Financial Ombudsman Service. The FOS regularly upholds Section 75 claims involving overseas purchases where card providers have incorrectly relied on the territorial argument rejected by the House of Lords. I will draw the FOS's attention to this specific rejection ground.

Yours faithfully,

[YOUR FULL NAME — PRINTED]

Case reference: *Office of Fair Trading v Lloyds TSB Bank plc* [2007] UKHL 48.
Legislation: Consumer Credit Act 1974, Section 75(1): legislation.gov.uk/ukpga/1974/39/section/75 | Section 12: legislation.gov.uk/ukpga/1974/39/section/12

USE THIS DOCUMENT WHEN

Your credit card provider has rejected your claim on the basis that only part of the purchase price was paid by credit card, and they say their liability is limited to that portion only. This rebuttal explains that Section 75 covers the full contract value, not just the amount charged to the card.

[YOUR FULL NAME]
[YOUR ADDRESS LINE 1]
[YOUR ADDRESS LINE 2]
[YOUR TOWN OR CITY]
[YOUR POSTCODE]

[DATE]

Section 75 Disputes Team
[CREDIT CARD PROVIDER NAME]
[CREDIT CARD PROVIDER ADDRESS LINE 1]
[CREDIT CARD PROVIDER ADDRESS LINE 2]
[CREDIT CARD PROVIDER POSTCODE]

Account / card reference: [YOUR ACCOUNT NUMBER OR LAST FOUR DIGITS OF CARD]

Formal Rebuttal — Section 75 Claim — Full Contract Value — Consumer Credit Act 1974

Dear Sir or Madam,

I refer to your letter dated [DATE OF REJECTION LETTER] concerning my Section 75 claim for a purchase from [SUPPLIER OR COMPANY NAME] dated [DATE OF PURCHASE].

The total purchase price was £ [TOTAL CONTRACT PRICE]. Of this amount, £ [AMOUNT PAID ON CREDIT CARD] was charged to my credit card with your organisation. The remaining £ [AMOUNT PAID BY OTHER MEANS] was paid by [OTHER PAYMENT METHOD — e.g. "bank transfer" / "cash" / "debit card"].

You have stated that [QUOTE OR SUMMARISE THE BANK'S POSITION — e.g. "your liability under Section 75 is limited to the amount of £[AMOUNT] charged to the credit card" / "we are only responsible for the portion of the purchase paid by credit card"].

This is not a correct statement of the law.

Section 75 covers the full contract value

Section 75(1) of the Consumer Credit Act 1974 provides that the creditor is "jointly and severally liable" with the supplier in respect of a "like claim" to that which the debtor has against the supplier. The claim I have against the supplier is for the full purchase price of £ **[TOTAL CONTRACT PRICE]** — that is, the full value of the contract that has been breached. This is my "like claim" against you as the jointly liable creditor.

The requirement in Section 75 that a credit card is used is a qualifying condition for liability, not a cap on the amount of that liability. Section 75(3)(b) makes clear that the qualifying threshold relates to the cash price of the item or service, not the amount financed by credit. The statute requires only that the credit card was used for part of the transaction, not that it was used for all of it.

This interpretation is consistent with the way the Financial Ombudsman Service handles such cases. The FOS routinely awards the full contract value in Section 75 claims where only part of the price was paid by credit card.

The threshold condition is satisfied

The relevant threshold under Section 75(3)(b) is that the cash price of the goods or services exceeds £100 and does not exceed £30,000. The cash price in this case is £ **[TOTAL CONTRACT PRICE]** , which satisfies this condition. The threshold applies to the total price of the item, not to the amount charged to the credit card.

My position

I am entitled to claim the full contract value of £ **[TOTAL CONTRACT PRICE]** under Section 75 of the Consumer Credit Act 1974, less any amounts already recovered from other sources. My outstanding claim is for £ **[TOTAL AMOUNT CLAIMED]** .

I ask that you revise your determination and issue a new final response within **14 days** of this letter, upholding my claim for the full amount.

If you maintain the position that Section 75 limits your liability to the amount charged to the credit card only, I will refer this matter to the Financial Ombudsman Service, which I expect will uphold my claim in accordance with the established interpretation of Section 75(1) and Section 75(3)(b).

Yours faithfully,

_____

[YOUR FULL NAME — PRINTED]

Legislation: Consumer Credit Act 1974, Section 75(1) and 75(3)(b): legislation.gov.uk/ukpga/1974/39/section/75

USE THIS DOCUMENT WHEN

Your credit card provider has rejected your Section 75 claim on the basis that you paid a booking agent, travel agent, or other intermediary rather than the ultimate supplier of the goods or services. This rebuttal addresses the debtor-creditor-supplier link and the distinction between an agent acting as principal and an agent acting on behalf of a disclosed third party.

[YOUR FULL NAME]
[YOUR ADDRESS LINE 1]
[YOUR ADDRESS LINE 2]
[YOUR TOWN OR CITY]
[YOUR POSTCODE]

[DATE]

Section 75 Disputes Team
[CREDIT CARD PROVIDER NAME]
[CREDIT CARD PROVIDER ADDRESS LINE 1]
[CREDIT CARD PROVIDER ADDRESS LINE 2]
[CREDIT CARD PROVIDER POSTCODE]

Account / card reference: [YOUR ACCOUNT NUMBER OR LAST FOUR DIGITS OF CARD]

Formal Rebuttal — Section 75 Claim — Debtor-Creditor-Supplier Link — Consumer Credit Act 1974

Dear Sir or Madam,

I refer to your letter dated [DATE OF REJECTION LETTER] rejecting my Section 75 claim concerning a purchase from [SUPPLIER OR COMPANY NAME] or [BOOKING AGENT OR INTERMEDIARY NAME] dated [DATE OF PURCHASE] for a total of £ [TOTAL CONTRACT PRICE] .

You have stated that [QUOTE OR SUMMARISE THE BANK'S POSITION — e.g. "Section 75 does not apply because you contracted with [AGENT NAME] rather than the underlying supplier" / "the debtor-creditor-supplier link is not established because payment was made to an intermediary"] .

I set out below why this rejection is not well-founded on the facts of my transaction.

The debtor-creditor-supplier link

Section 75 requires a "debtor-creditor-supplier agreement" as defined in Section 12 of the Consumer Credit Act 1974. In cases involving booking agents or intermediaries, the question is whether the party that received the credit card payment was the supplier of the goods or services within the meaning of the Act.

Where a booking agent or platform contracts with a consumer as a principal — that is, it sells the product or service in its own name and bears the contractual liability for delivery — it is the supplier for Section 75 purposes. The underlying provider (the hotel, airline, venue, or manufacturer) is not the relevant "supplier" in this analysis; the party that entered the contract with the consumer is.

Conversely, where an agent acts in a disclosed agency capacity — making clear that it is merely facilitating a contract between the consumer and a named third party — the underlying provider may be the relevant supplier, and whether the three-party link is established depends on the specific contractual structure.

My transaction

Use Option A if the agent sold the product in its own name. Use Option B if the agent was acting for a disclosed third party. Delete the option that does not apply.

OPTION A — THE AGENT CONTRACTED WITH ME AS PRINCIPAL

[BOOKING AGENT OR INTERMEDIARY NAME] contracted with me as a principal. My contract was with **[BOOKING AGENT OR INTERMEDIARY NAME]**, not with **[UNDERLYING SUPPLIER IF KNOWN]**. Evidence of this includes: **[DESCRIBE THE EVIDENCE — e.g. "my booking confirmation is issued by [AGENT NAME] and bears their company number and registered address" / "the terms and conditions presented at the point of sale state that the contract is between me and [AGENT NAME]" / "my receipt and all correspondence is from [AGENT NAME] and makes no disclosure of a named third-party principal"]**.

As **[BOOKING AGENT OR INTERMEDIARY NAME]** was the party with which I contracted and to which I paid on my credit card, the debtor-creditor-supplier link under Section 12(b) of the Consumer Credit Act 1974 is satisfied. Section 75 applies to my claim against you as the creditor.

OPTION B — THE AGENT ACTED FOR A DISCLOSED THIRD PARTY (ALTERNATIVE ARGUMENT)

Even if **[BOOKING AGENT OR INTERMEDIARY NAME]** was acting as a disclosed agent for **[UNDERLYING SUPPLIER NAME]**, the debtor-creditor-supplier link may still be established. Where credit card payments made to an agent are passed to the underlying supplier in settlement of the consumer's obligation, the economic substance of the transaction is that the

credit financed the purchase from the underlying supplier. The Financial Ombudsman Service has upheld Section 75 claims in analogous circumstances where the economic reality of the transaction establishes the required link.

My position

Whether **[BOOKING AGENT OR INTERMEDIARY NAME]** was acting as principal or as agent, my Section 75 claim is valid. The debtor-creditor-supplier link is established. I am claiming £ **[TOTAL AMOUNT CLAIMED]** in respect of the breach described in my original claim letter dated **[DATE OF ORIGINAL CLAIM]** .

I ask that you issue a revised determination within **14 days**. If you maintain your rejection, I will refer this matter to the Financial Ombudsman Service and draw to their attention the specific rejection grounds you have relied upon.

Yours faithfully,

[YOUR FULL NAME — PRINTED]

Legislation: Consumer Credit Act 1974, Sections 12 and 75: legislation.gov.uk/ukpga/1974/39/section/75 | legislation.gov.uk/ukpga/1974/39/section/12

USE THIS DOCUMENT WHEN

Your credit card provider has issued a final rejection of your Section 75 claim, or has not responded within eight weeks of your original claim. Send this to the Financial Ombudsman Service within six months of the date on the bank's final response letter. The FOS service is free and its decisions are binding on the bank.

[YOUR FULL NAME]
[YOUR ADDRESS LINE 1]
[YOUR ADDRESS LINE 2]
[YOUR TOWN OR CITY]
[YOUR POSTCODE]
[YOUR EMAIL ADDRESS]
[YOUR PHONE NUMBER]

[DATE]

Financial Ombudsman Service
Exchange Tower
London
E14 9SR

Complaint Against [CREDIT CARD PROVIDER NAME] — Refusal of Section 75 Claim

Dear Sir or Madam,

I write to refer a complaint to the Financial Ombudsman Service against [CREDIT CARD PROVIDER NAME] (FCA firm reference number: [CREDIT CARD PROVIDER FCA FRN — find this at register.fca.org.uk]) in respect of their refusal of my Section 75 claim under the Consumer Credit Act 1974.

Summary of the complaint

On [DATE OF ORIGINAL PURCHASE] , I made a purchase from [SUPPLIER OR COMPANY NAME] for [DESCRIPTION OF GOODS OR SERVICES] at a total price of £ [TOTAL CONTRACT PRICE] . I paid £ [AMOUNT CHARGED TO CREDIT CARD] of this amount on my [CREDIT CARD PROVIDER NAME] credit card, account ending [LAST FOUR DIGITS] .

The supplier subsequently **[DESCRIBE THE FAILURE — e.g. "went into administration on [DATE] and failed to deliver the goods or services" / "delivered goods that were not of satisfactory quality" / "delivered goods materially different from their description"]**. This constitutes a breach of contract on the part of the supplier.

My claim and the bank's response

I made a formal Section 75 claim to **[CREDIT CARD PROVIDER NAME]** on **[DATE OF ORIGINAL CLAIM LETTER]**, claiming the sum of £ **[TOTAL AMOUNT CLAIMED]**.

[CREDIT CARD PROVIDER NAME] issued their final response on **[DATE OF FINAL RESPONSE LETTER]**, rejecting my claim on the following grounds: **[SUMMARISE THE BANK'S STATED REASONS FOR REJECTION]**.

If you sent a rebuttal letter and the bank rejected that too, include the following sentence — otherwise delete it.

I responded with a written rebuttal on **[DATE OF REBUTTAL LETTER]**, setting out why their rejection was not well-founded. **[CREDIT CARD PROVIDER NAME]** maintained their rejection by letter dated **[DATE OF SECOND REJECTION]**.

Why I believe the bank's decision is wrong

The conditions of Section 75(1) of the Consumer Credit Act 1974 are clearly satisfied in this case:

1. The purchase was made using a regulated consumer credit agreement (my personal credit card issued by **[CREDIT CARD PROVIDER NAME]**).
2. The total purchase price of £ **[TOTAL CONTRACT PRICE]** is between £100 and £30,000, satisfying Section 75(3)(b).
3. The supplier is in breach of contract as described above.

[CREDIT CARD PROVIDER NAME] is jointly and severally liable with the supplier under Section 75(1). Their reasons for rejection are: **[EXPLAIN BRIEFLY WHY THE BANK'S STATED REASONS ARE WRONG — e.g. "not well-founded in law: joint and several liability does not require me to pursue the supplier first" / "incorrect: the full contract value, not just the card payment, is covered by Section 75" / "contrary to OFT v Lloyds TSB [2007] UKHL 48, which confirmed that Section 75 applies to overseas purchases"]**.

What I am asking the FOS to do

I ask the Financial Ombudsman Service to investigate my complaint and to direct **[CREDIT CARD PROVIDER NAME]** to:

1. Pay me the sum of £ **[TOTAL AMOUNT CLAIMED]** in full settlement of my Section 75 claim.
2. **[ANY ADDITIONAL REMEDY — e.g. "Pay interest on this sum from [DATE] at 8% per annum, consistent with FOS standard practice" — delete if not applicable]**

Confirmation of eligibility to complain

- I am the account holder named on the credit card account.
- The bank's final response letter is dated **[DATE OF FINAL RESPONSE]**. I am referring this complaint within six months of that date, satisfying the time limit under DISP 2.8.2R.
- I have not previously referred this complaint to the FOS.
- I have not commenced legal proceedings against **[CREDIT CARD PROVIDER NAME]** in respect of this matter.

Documents enclosed

- Copy of my original Section 75 claim letter dated **[DATE]**
- Copy of **[CREDIT CARD PROVIDER NAME]**'s final response letter dated **[DATE]**
- **[Copy of my rebuttal letter dated [DATE] — delete if not applicable]**
- **[Copy of the bank's response to my rebuttal dated [DATE] — delete if not applicable]**
- Credit card statement showing the transaction
- Order confirmation or receipt from **[SUPPLIER NAME]**
- **[ANY FURTHER EVIDENCE — delete if not applicable]**

I am happy to provide any further information the FOS requires. Please contact me at the email address or telephone number above.

Yours faithfully,

_____

[YOUR FULL NAME — PRINTED]

FOS contact: Financial Ombudsman Service, Exchange Tower, London, E14 9SR | 0800 023 4567 | financial-ombudsman.org.uk | Submit online: financial-ombudsman.org.uk/contact-us
Legislation: Consumer Credit Act 1974, Section 75: legislation.gov.uk/ukpga/1974/39/section/75 | FCA DISP rules: handbook.fca.org.uk/handbook/DISP